NEW YORK STATE
PUBLIC SERVICE COMMISSION

CASE 25-E-0072 – Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Electric Service.

CASE 25-G-0073 – Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Gas Service.

PULP STATEMENT OF NON-OPPOSITION TO APPROVAL OF THE JOINT PROPOSAL

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PRELIMINARY STATEMENT

The Public Utility Law Project of New York, Inc. ("PULP") hereby submits this Statement of Non-Opposition of the Joint Proposal ("JP") filed with the New York Public Service Commission ("PSC" or "Commission") by Department of Public Service ("DPS") Staff ("Staff") on November 5, 2025.

PULP has taken on a position of non-opposition on the JP. The settlement secures important enhancements and improvements aligned with PULP's core priorities, including stronger customer service protections during extreme weather, expanded language access, protections for Limited English Proficient ("LEP") customers, protections for electric heat customers, protections for tenants residing in multiple dwellings, and more. PULP does recognize that cost impacts, such as the 9.4% Return on Equity ("ROE") and the three-year delivery rate increases, will be difficult for customers to afford, especially during these unprecedented times where funding for vital federal low-income assistance programs, such as the Home Energy Assistance Program ("HEAP") and the Supplemental Nutrition Assistance Program ("SNAP"), are uncertain. Therefore, PULP's non-opposition reflects both the meaningful progress achieved and the challenges that remain.

PROCEDURAL HISTORY

The Company filed a request for new rates on January 31, 2025. PULP and other parties filed Direct Testimony on May 30, 2025. The Company, the Department of Public Service ("DPS"), the Metropolitan Transit Authority ("MTA"), Individual Intervenors, the New York Power Authority ("NYPA"), Assemblyman Burdick, City of New York ("CNY"), New York Energy Consumers Council ("NYECC"), Utility Intervention Unit Department of State ("UIU") and the Utility Workers Union of America ("UWUA"), filed Rebuttal Testimony on June 24,

2025. The Company filed a Notice of Impending Settlement Negotiations on June 24, 2025. Settlement negotiations commenced on June 26, 2025, and continued through November 2025. A JP was filed on November 6, 2025. PULP now submits this Statement in Non-Opposition, which sets forth our basis and rationale for neither opposing nor supporting the JP. PULP notes that silence on any matter contained in the JP does not indicate PULP's support. PULP also reserves the right to discuss additional matters in future statements, briefs, or during a future Evidentiary Hearing.

STANDARD OF REVIEW

According to the Commission's Settlement Guidelines, "[a]ll Commission decisions, including those pertaining to proposed settlements must be, and appear to be just, reasonable, and in the public interest."[1] The elements considered in determining the "public interest" include: 1. Consistency with the law and regulatory economic, social and environmental State and Commission policies; 2. Whether the terms of the joint proposal compare favorably with the likely result of a fully litigated case and produce a result within the range of reasonable outcomes; 3. Whether the joint proposal fairly balances the interests of ratepayers, investors, and the long-term soundness of the utility; and 4. Whether the joint proposal provides a rational basis for the Commission's decision. Additionally, Commissioners are guided in their assessment by two additional factors. First, the completeness of the record, and second, whether the settlement is contested.[2]

ARGUMENT

[1] Cases 90-M-0225 and 92-M-0318, Opinion, *Order and Resolution Adopting Settlement Procedures and Guidelines* (issued March 24, 1994), pg. 30.
[2] *Id*.

I. The Joint Proposal Represents Monthly Bill Impacts and an ROE that are lower than the Company's Original Proposal.

In the Company's original filing, dated January 31, 2025, the Company requested a delivery revenue increase of $1.6 billion on the electric side and $440 million on the gas side[3], with bill impacts of 11.4% total bill increase on the electric and 13.3% total bill increase on the gas for a one-year rate plan.[4]

a. Monthly Bill Impacts

In the JP, the delivery revenue increases for the electric[5] and gas[6] are included for a three-year rate plan, with impacts presented on both a "unshaped" and "shaped" basis. According to the JP, "shaped rate changes" are designed to produce consistent bill impacts for each rate year (as opposed to "levelized" rate changes which produce consistent dollar amount rate changes each year).[7] Based on this "shaped" design, electric revenue increases will be $234 million in Rate Year 1, $409.7 million in Rate Year 2 and $421.1 million in Rate Year 3, producing 4.3% – 4.4% delivery bill impacts each year.[8] For gas, revenue increases will amount to $27.5 million in Rate Year 1, $68.8 million in Rate Year 2 and $70.3 million in Rate Year 3, producing 2.8% delivery bill impacts each year.[9] Annual total bill impacts will be 2.8% on the electric side, and 2.0% for gas.[10]

Residential bill impacts will be incrementally offset to the extent that overall enrollment in the Company's energy affordability program ("EAP") increases from current levels. That being said, Rate Year 1 percentage electric delivery bill impacts for customers already enrolled

[3] *See*, Cases 25-E-0072 et. al., *Initial Filing Letter*, January 31, 2025, at 3.
[4] *Id.*
[5] *See*, Cases 25-E-0072 et al., *Joint Proposal*, at 4.
[6] *Id.* at 10.
[7] *Id.* at 4, Footnote 7; 10, Footnote 15.
[8] *Id.* at 4.
[9] *Id.* at 10.
[10] *Id.* at 4, 10.

in EAP will be disproportionately high relative to Rate Years 2 and 3, which will be largely flat or negative.[11] PULP believes that the disparity between rate years is the result of the standardized, formulaic methodology the Commission requires for setting EAP discounts. In its August 12, 2021 *Order Adopting Energy Affordability Policy Modifications and Directing Utility Filings* in Case 14-M-0565, the Commission adopted a policy that the methodology for determining EAP discounts must be considered only on a generic basis; not in individual rate cases.[12] As such, in contrast to the settling parties' ability to "shape" undiscounted delivery bill impacts over the three-rate years in these proceedings, they have no discretion they can use to adjust EAP discounts to similarly "shape" EAP delivery bill impacts.

A key input to the generic methodology gives rise to the much higher Rate Year 1 electric bill impacts forecast for EAP participants in 2026: the use of average undiscounted bills from 2023 through 2025. Discounts for 2025 had used 2022 – 2025 average bills, with 2022 being a year that Con Edison customers saw their electric supply costs skyrocket. As 2022 dropped off as an input, average bills decreased, resulting in lowered discounts. Despite this, PULP notes that, at 4.3%, the compounded annual percentage bill impacts for Tier 1 electric EAP (about 91% of all electric EAP participants) are equivalent to those of the residential class overall. That being said, the advisability of recommending some form of "shaping" of discounted bill impacts is clear, particularly since the updating of average undiscounted bill inputs is likely to affect the residential customers of other electric utility customers in New York. For this reason, PULP encourages the EAP Working Group in Case 14-M-0565 to examine the need for, and feasibility of, adjusting EAP discounts to avoid the

[11] *See, Settling Parties' Response to I/R PULP-98*, Attachment 1 at 1; *Settling Parties' Response to I/R PULP-99*, Attachment 1 at 1 – 2, 9 – 16.
[12] *See, Order Adopting Energy Affordability Policy Modifications and Directing Utility Filings*, Case 14-M-0565, at 38 – 29.

rate shock that may be caused to the State's residential utility customers as a result of lower EAP discounts for 2026.

b. ROE

In the Company's original filing, a 10.1% ROE was requested.[13] The authorized ROE under the JP is 9.4%.[14] While the bill impacts and the ROE have been substantially lowered from the Company's original request, we recognize that these bill impacts will place additional strain on household budgets, especially those customers that are not enrolled in EAP.

II. The Joint Proposal Includes Several Meaningful Customer-Focused Provisions that Align with PULP's Core Priorities in this Rate Case.

a. *The JP Includes Additional Provisions Related to Language Access*

In PULP's direct testimony, we raised many concerns involving language access at the Company.[15] PULP wants to ensure that Limited English Proficient ("LEP") customers are on more even ground with customers who speak English. To that end, the JP has an array of provisions that will assist the Company's communication with their LEP population. First, the Company has agreed to expand language offerings in various forms (i.e. brochures, direct mail, flyers etc.) in 12 languages other than English.[16] These languages will include Spanish, Russian, Chinese, Korean, Polish, Bangali (Bangla), Haitian-Creole, Urdu, Yiddish, Arabic, French, and Italian.[17]

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[13] Cases 25-E-0072 et. al., *Accounting Panel Testimony*, at 9.
[14] *JP*, at 14.
[15] *See*, Cases 25-E-0072 et al., Testimony of William D. Yates, CPA for the Public Utility Law Project of New York, Inc., *Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Electric and Gas Service* at 65.
[16] *See*, Cases 25-E-0072 et al., *Joint Proposal*, at 83.
[17] *Id*.

The Company also has agreed to add an additional question on Start Service applications requesting the customer's language preference, while also providing information on language access resources to those who are identifying as LEP.[18] Additionally, the Company will create a Language Assistance website where translated resources and information on how to receive additional support will be located.[19] PULP is grateful for these provisions as we believe they will assist LEP customers in navigating the complex utility world.

Additionally, the Company agreed to add two provisions to its final termination notices.[20] First, the Company will add a language block in the 12 languages specified stating that the document is a termination notice and should be translated.[21] Second, a QR code, or website if space is limited, will also be added to final termination notices that will take customers to the new Language Assistance website discussed above.[22]

Lastly, the Company agreed to a few proposals related to bilingual customer service representative ("CSR") hiring. First, the Company agreed to conduct an analysis of customer language requests that require oral interpretation services and then will use this analysis to guide options for staffing its call center with bilingual CSRs.[23] Additionally, the Company agreed to prioritize bilingual CSR hiring in RY1 and provide training to bilingual CSRs on utility terminology and communications in languages other than English.[24]

PULP believes these provisions on language access and bilingual hiring are a good first step in ensuring LEP customers are on the same footing as their English-speaking counterparts.

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[18] *Id*.
[19] *Id.* at 83-4.
[20] *Id*. at 84.
[21] *Id*.
[22] *Id*.
[23] *Id*.
[24] *Id*.

PULP appreciates the Company and other parties' commitment to meet LEP customers where they are at.

b. *The JP Includes Additional Provisions Related to Customer Terminations*

The JP includes provisions that will support customers who are facing termination of services as well as provisions to assist in situations where an entire building is at risk of termination due to the landlord's non-payment. PULP flagged these issues in our direct testimony, where we discuss the confusion and fear tenants have when they are in a situation where their landlord has not paid the utility bill and the entire building may be facing shut off.[25] Essentially, in these situations, the tenants are caught in the middle with limited options for preventing the loss of service.[26]

In light of these issues, the Company has agreed to add a QR code to the "Urgent Notice" public posting for multiple dwellings that will take a tenant to a website with resources that can support tenants.[27] The website will include information on who to contact for assistance as well as links to Housing Preservation and Development's ("HPD") and the Office of Temporary and Disability Assistance's ("OTDA") websites for information on emergency housing services.[28]

The Company has also agreed to conduct annual outreach to associations and organizations representing the interests of landlords to discuss any problems with landlord arrears, service terminations, and solutions.[29] PULP considers this provision to be a necessary step in working with landlords and building owners on the issue of service termination before tenants become stuck in the middle of any situation that could lead to their loss of utility service.

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[25] Supra note 15, at 83.
[26] *Id*.
[27] *See*, Cases 25-E-0072 et al., *JP*, at 84-5.
[28] *Id*.
[29] *Id*. at 85.

Additionally, the Company has agreed to not only continue to notify tenants that the risk of termination is no longer in effect, as required by New York Public Service Law § 33(1-a), but also to specify that the tenants need not take further action.[30] Knowing clearly that there is no longer a risk of termination will help alleviate some of the confusion and fear these tenants may have.

Finally, the Company has also agreed to add a QR code (or website address if space is not available) that will lead to coned.com/billhelp, where there will be information for residential customers on the Energy Affordability Program ("EAP"), deferred payment agreements and final termination notices.[31] Collectively, PULP believes these provisions will provide clarity to tenants in multiple dwellings, as well as assist residential customers at risk of shut off in finding resources and a path forward.

c. The JP Includes Provisions to Assist Customers with Electric Heat Re-Coding

In PULP's direct testimony, we flagged an issue with the coding of accounts to electric heat.[32] Ultimately, PULP was, and is, concerned that low-income customers who would otherwise qualify for the Low-Income Home Energy Assistance Program ("LIHEAP") full benefit were only receiving the "renters LIHEAP", considered a "non-heating" grant which is significantly lower than the full regular benefit under LIHEAP and does not go to the utility company.[33] We are grateful that the Company, and other parties, also considered this to be an important issue and that they have worked to finalize provisions ultimately helping low-income customers in the service territory.

[30] *Id*.
[31] *Id*. at 84.
[32] Supra note 15, at 75.
[33] *Id*. at 76.

First, the Company has agreed to develop analytical tools to help identify electric customers currently coded as non-heating who may be responsible for their own heating.[34] Additionally, the Company, throughout the rate period, will then use these tools to perform an analysis for residential electric customers not already coded, starting with customers currently enrolled in EAP.[35] After the analysis is complete, the Company has agreed to engage in direct outreach with those customers identified to determine if they are responsible for their heating costs, including development of outreach materials that will help customers determine what steps they need to take to be re-coded as electric heat in the Company's billing system.[36]

The JP also specifies that the Company aims to resolve these cases within 30 days, but may need additional time to resolve depending on the circumstances.[37] The Company has agreed to develop training materials for CSRs, senior CSRs, and outreach on the process of re-coding accounts for electric heat as well as development of questions for customers who are requesting a recoding, to be asked by CSRs.[38] The Company agreed to develop these materials by the end of RY1.[39] Furthermore, the Company has agreed to engage in annual direct outreach to associations and organizations representing the interests of landlords to discuss the process for updating utility accounts to electric heating.[40]

Finally, the Company has also agreed to begin filing an annual electric heating report in Case 25-E-0072.[41] The report will include: the number of customers contacted to determine whether they are responsible for their own electric heating needs; the number of requests by

[34] See, Cases 25-E-0072 et al., *JP*, at 85.
[35] *Id*.
[36] *Id*. at 85-6.
[37] *Id*. at 86.
[38] *Id*.
[39] *Id*.
[40] *Id*.
[41] *Id*. at 87.

customers to recode their accounts as electric heat accounts; the number of requests by customers to recode their accounts as electric heat accounts; the number of investigations/on-site inspections completed by the Company; the number of customers whose accounts were recoded as electric heat accounts; the number of customers whose electric heat recoding was completed within 30 days, within 31-60 days, within 61-90 days, and in more than 90 days; and the number of RTE cases related to electric heat coding as of the end of the 12-month reporting period. The Company will then file its first report on electric hearting by June 30, 2027, for the period from May 1, 2026, through April 30, 2027, and annually thereafter.

d. *The JP Includes Weather-Related Customer Protections*

Under the JP, the Company will continue to not perform service terminations for non-payment for residential customers on days where the heat index is forecasted by the National Weather service to reach 90 degrees or higher, as well as one calendar day before and two calendar days after the extreme heat event.[42] The Company has also agreed to use the highest heat index from the National Weather Stations at Central Park, LaGuardia Airport and JFK Airport.[43] Adding additional weather stations to measure the heat index will help protect customers from extreme heat days.

e. *The JP Includes Additional Provisions Related to the Energy Affordability Program ("EAP")*

The JP includes provisions related to the EAP, including provisions on outreach. First, the Company has agreed to amend its electric and gas tariffs to eliminate both the EAP electric and gas reconnection fee waiver program and to no longer subject those enrolled in EAP to meter

[42] JP at 90.
[43] JP at 90.

reconnections fees following termination.[44] Additionally, the Company has agreed to conduct direct outreach to at least 25 local community-based organizations to offer educational materials as well as applications for the EAP.[45] The Company will also work with community-based organizations to improve outreach for the EAP in Disadvantaged Communities ("DACs"). PULP is grateful for the Company's commitment to spreading the word of the EAP to its customers and local community-based organizations, while also protecting EAP customers from fees and applications related to reconnection to service.

CONCLUSION

For the reasons discussed above, PULP submits our Statement of Non-Opposition.

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[44] *Id*. at 94.
[45] *Id*. at 101.